

Protection of Plant Varieties and Farmers' Rights Rules, 2003

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UNION OF INDIA

India

Protection of Plant Varieties and Farmers' Rights Rules, 2003

Rule PROTECTION-OF-PLANT-VARIETIES-AND-FARMERS-RIGHTS-RULES-2003 of 2003

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Protection of Plant Varieties and Farmers' Rights Rules, 2003

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In exercise of the powers conferred by section 96 of the Protection of Plant Varieties and Farmers' Rights Act, 2001 (53 of 2001

) read with section 22 of the General Clauses Act, 1897 (10 of 1897), the Central Government hereby makes the following rules, namely:-

Chapter I

Preliminary

1.

Short title and commencement. - (1) These rules may be called The Protection of Plant Varieties and Farmers' Rights Rules, 2003.

(2)

They shall come into force on the date on which the Act shall come into force.

2.

Definitions. - In these rules, unless the context otherwise requires,-

(a)

"Act" means the Protection of Plant Varieties and Farmers' Rights Act, 2001 (53 of 2001

);

(b)

"Authority" means the Protection of Plant Varieties and Farmers' Rights Authority established under sub-section (1) of section 3;

(c)

"Chairperson" means the chairperson of the Authority appointed under clause (a) of sub-section (5) of section 3;

(d)

"fee" means the fee specified in the Second Schedule;

(e)

"Form" means a Form specified in the First Schedule;

(f)

"Gazette" means the Official Gazette of the Government of India;

(g)

"journal" means the monthly Journal of the Authority;

(h)

"non-official member" means a member of the Authority other than a member, ex officio ;

(i)

"notice" means a notice issued by the Tribunal or the Registrar or the Authority under the Act;

(j)

"Registrar" means a Registrar of Plant Varieties appointed under sub-section (4) of section 12 and includes the Registrar General of Plant Varieties appointed under sub-section (3) of that section;

(k)

"Schedule" means a Schedule annexed to these rules;

(l)

"section" means a section of the Act;

(m)

"representation" means any written communication addressed to the Authority or the Registrar in any proceeding under the Act;

(n)

all other words and expressions used, but not defined in these rules, but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Details of particulars to be furnished while making an application or representation. - (1) Save in case of forms specified by the Authority under the Act, every person making an application or representation under the Act or these rules, shall furnish the particulars in the Forms specified in the First Schedule.

(2)

If any application or representation has been filed without furnishing all the particulars as specified in the relevant Forms specified in the First Schedule, the Authority or the Registrar, as the case may be, shall give one month's notice to the applicant or the person, who has filed the application or the representation to file such particulars.

(3)

In the event the applicant or the person, who has filed the application or the representation, defaults or fails to rectify the application or the representation, as the case may be, in terms of the notice under sub-rule (2) within one month as

allowed, the said application or the representation shall be liable to be rejected without any further notice.

(4)

Where no Form is specified for any purpose, the applicant may adopt as nearly as may be a Form specified in the First Schedule with such modifications and variations as may be considered necessary.

4.

Office of the Authority. - (1) The office of the Authority shall, for all proceedings under the Act, be the head office of the Authority at New Delhi or the branch office, as the case may be, within whose territorial limits-

(a)

the applicant for registration of the plant variety or the farmers' right has his principal place of business or domicile; or

(b)

the applicant for registration of the plant variety or the farmers' right, whose name is first mentioned in the application, resides or has his principal place of business or domicile, if the application is made jointly in the names of two or more persons; or

(c)

the agent or licensee of the registered breeder has his principal place of business or domicile.

(2)

Notwithstanding anything contained in sub-rule (1), until the branch offices are established, the appropriate office for all proceedings under the Act shall be the head office of the Authority at New Delhi.

5.

Address for service of notices, etc. - (1) Every person including the applicant, concerned in any proceeding to which the Act or these rules apply, shall furnish to the Authority or the Registrar the complete address for service in India and that address shall be treated for all purposes connected with such proceedings or the rights granted, as the address of the person or persons in the proceedings.

(2)

Unless such an address is given, the Authority or the Registrar shall be under no obligation either to proceed or deal with any proceeding or to send any notice that may be required to be given under the Act or these rules.

6.

Procedure regarding application, representation and issue of notices. - (1) Every application or representation shall be made in writing, signed by the applicant or the person who has made the representation, and delivered to the Registrar or the Authority at its office.

(2)

The names and addresses of the applicants and other persons shall be given in full, together with their nationality and such other particulars, as are necessary for their identification and for sending communications to them.

(3)

(a)

All applications, representations and documents filed or required to be filed under the Act or the rules shall be filed in triplicate:

Provided that in cases where the Registrar or the Authority requires more than three copies of such applications, representations, or documents, the applicant or the person, who has filed the application or the representation, shall be required to supply as many copies as is specified by the Authority or the Registrar.

(b)

In case of failure to furnish the required number of copies within a period of three months, the Registrar or the Authority may reject the application or the representation or may treat the application or representation as withdrawn.

(4)

Any application, representation or document required to be sent to or filed with the office of the Authority or the Registrar may be delivered either by hand or by registered letter with acknowledgment due or electronic mail, addressed to the Authority or to the Registrar at their office.

(5)

If any application or a representation or document is delivered to the Authority or the Registrar by hand, an acknowledgment receipt shall be issued by the Authority or the Registrar's office with its seal.

(6)

In case of delivery by registered post with acknowledgment due or by electronic mail, it shall be presumed to have been filed, or given at the time when the same has been received by the office concerned.

(7)

Any written communication addressed to an applicant or the holder of any right under the Act, at his address in the Register of Plant Varieties maintained under the Act or at the address for service furnished under rule 5 in any proceedings under the Act or these rules, at the address appearing on the application or notice of opposition or reply or counter reply or any such representation, shall be presumed to be properly addressed:

Provided that in cases where the receipt of such a representation or application has been delayed beyond the normal period of delivery or transmission, such a delay may be condoned.

(8)

All notices and written communications addressed to an applicant or to any holder of right, in any proceeding under the Act or these rules, and all documents forwarded to the applicant or the holder of any right or an opponent shall, except when they are sent by special messenger, be sent by registered post acknowledgment due or by electronic mail.

(9)

(a)

The acknowledgment receipt issued by the office concerned or the postal certificate receipt shall be the sufficient proof as to the delivery or sending of any document under the Act or these rules.

(b)

In case of transmission by electronic mail, the electronic receipt with the recognised digital signature, by the applicant or the person, who has made the representation, shall be the proof of the receipt.

7.

Application not to be admitted in certain cases. - No application or representation shall be made to the authority or registrar covering the subject-matter already included in an earlier application made by the same person, and such subsequent application shall not be admitted by the registrar or the authority, as the case may be.

8.

Fees. - [(1) The amount of fees payable in respect of the registration of plant varieties and grant of any right under the Act or any application or any document to be filed under the Act or the rules made thereunder shall be as per the rates specified in the Second Schedule.]

(2)

(a)

The fees payable may either be paid in cash or may be sent by money order or postal order or bank draft or cheque payable to the Authority or the Registrar, as the case may be, at their respective offices, drawn on a scheduled bank at the place where the office is situated.

Explanation. - For the purposes of these rules, "scheduled bank" means a bank included in the Second Schedule to the Reserve Bank of India Act, 1934 (2 of 1934

).

(b)

Any cheque or draft (not including the fees in cash) on which the value specified therein cannot be collected in cash within the time allowed for the payment of the fees, shall be accepted at the discretion of the Registrar.

(c)

The stamps shall not be received in the payment of any fees payable under these rules.

(d)

Where a fee is payable in respect of the filing of a document or application or representation, the date on which the entire fee is paid shall be the date of filing of the document or the representation.

(3)

Where any test is required to be conducted under any of these rules, the applicant or the concerned person shall be required to pay the requisite fee specified in the Second Schedule.

(4)

Any application or representation or document shall be liable to be rejected on account of non-payment of fees and no test shall be conducted unless and until the parties interested deposit the required amount of fees as specified in the

Second Schedule.

9.

Size, etc., of documents. - All documents and copies of documents, except affidavits and drawings, sent to or left at the office of the Authority or otherwise furnished to the Registrar shall be written, typewritten, lithographed, or printed (either in the Hindi or in the English language unless otherwise directed or allowed by the Authority or the Registrar-General) in large and legible characters with deep indelible ink with lines widely spaced upon one side only of strong white paper of a size of approximately 33.00 centimetres by 20.50 centimetres (13 inches by 8 inches) or 29.7 centimetres by 21 centimetres (11 3/4 inches by 8 1/4 inches) with a margin of at least four centimetres (one and a half inches) on the left hand part thereof.

10.

Affidavits. - The affidavits required to be filed under these rules shall be dated and signed at the foot and shall contain a statement that the facts and matters stated therein are true to the best of the knowledge, information and belief of the person making the affidavit.

Chapter II

Plant Varieties And Farmers' Rights Protection Authority

11.

Manner of Selection and Appointment of the Chairperson . - [(1) These rules may be called the Protection of Plant Varieties and Farmers Right (Amendment) Rules, 2004.

(i)

An eminent scientist or an expert, having special knowledge and Professional experience in respect of the law relating to protection of plant varieties and plant varietal research or plant breeding, to be nominated by the Central Government in the Ministry of Agriculture

Chairman;

(ii)

Secretary to the Government of India, Department of Agriculture and Cooperation

Member;

(iii)

Secretary to the Government of India, Department of Agriculture Research and Education

Member;

(iv)

Secretary to the Government of India, Department of Biotechnology

Member.

]

12.

Term of office of the Chairperson. - The Chairperson shall hold office for a term of five years or up to the age of sixty-five years, whichever is earlier, and shall be eligible for re-appointment:

Provided that no Chairperson shall hold office for a total period exceeding ten years, or after he has attained the age of sixty-five years, whichever is earlier.

13.

Salary, allowances, conditions of service, leave, pension, provident fund, etc., of the Chairperson. - The Chairperson shall be entitled to such salary, allowances, leave, pension, provident fund and other perquisites as are admissible to a Secretary to the Government of India.

14.

Resignation or removal of the Chairperson from office in certain cases. - (1) The Chairperson may resign from his office by giving notice in writing to the Central Government.

(2)

The Central Government shall remove the Chairperson from office if he,-

- (a)
is or at any time has been, adjudicated as an insolvent;
 - (b)
has been convicted of an offence which, in the opinion of the Central Government, involves moral turpitude;
 - (c)
has become physically or mentally incapable of acting as the Chairperson;
 - (d)
has failed in discharging the duties and responsibilities under the Act and the rules made thereunder;
 - (e)
has acquired such financial or other interest as is likely to affect prejudicially his function as the Chairperson;
 - (f)
has, in the opinion of the Central Government, so abused his position as to render his continuation in office detrimental to the public interest;
 - (g)
any other substantiated ground which is unbecoming of a public servant under the Government of India:
- Provided that the chairperson shall not be removed under this sub-rule unless he has been given a reasonable opportunity of being heard in the matter.

15.

Term and allowances of non-official members. - (1) Every non-official member of the Authority shall hold office for a period of three years from the date of his appointment.

(2)

The Central Government shall appoint new non-official member of the Authority within six months of the expiration of the term of the non-official member.

(3)

A non-official member shall be entitled to sitting allowance and travelling expenses, at such rate as may be fixed by the Central Government from time to time in this regard.

16.

Proceedings of the Authority. - (1) The Authority shall meet at least twice in a year at the head quarters of the Authority or at such place as may be decided by the Chairperson.

(2)

The Chairperson shall, upon a written request of not less than five members of the Authority or upon a direction of the Central Government, call a special meeting of the Authority.

(3)

At least fifteen days' notice of an ordinary meeting and three days' notice of a special meeting specifying the purpose, the time and the place at which such meeting is to be held, shall be given to the members.

(4)

Every meeting shall be presided over by the Chairperson and in his absence, by a Presiding Officer to be chosen by the members present from amongst themselves.

(5)

The decision of the Authority shall be taken by a majority of the votes of the members present and voting and in the event of equality of votes, the Chairperson or in his absence, the member presiding over the meeting shall have a second or casting vote.

(6)

Every member shall have one vote.

(7)

The quorum for the meeting of the Authority shall be five [excluding Chairperson and Registrar - General].

(8)

No member shall be entitled to bring forward for the consideration of a meeting any matter of which he has not given ten days' notice to the Member-Secretary unless the Chairperson, in his discretion, permits him to do so.

(9)

The notice of the meeting may be given to the members by delivering the same by messenger or sending it by registered post to his last known place of residence or business or in such other manner as the Chairperson or the Member-Secretary may, in the circumstances of the case, think fit.

17.

Chairman and proceedings of the Standing Committee. - (1) The Chairperson shall select a member of the Standing Committee appointed by him under sub-section (7) of section 3 from amongst the members of that Committee to preside over its meeting.

(2)

In the absence of the member selected under sub-rule (1), the meeting of the Standing Committee shall be presided over by the member who shall be elected by the members present at meeting from amongst themselves.

(3)

The decision in the meeting of the Standing Committee shall be taken by a majority of the members present and voting and in the event of equality of votes, the member selected under sub-rule (1) or in his absence, the member presiding over the meeting shall have a second or casting vote.

(4)

Every member shall have one vote.

(5)

The quorum for the meeting of the Standing Committee shall be three.

(6)

The convener of the Standing Committee may, in consultation with the Authority, determine the venue of its meetings any where in India; and serve notice of such meeting to all members at least fifteen days in advance.

18.

Appointment of Expert Committee by the Authority. - (1) The Authority may appoint such experts or consultants as it considers necessary to seek guidance and assistance in technical areas demanding specialized advisory inputs, to enable the Authority for efficient discharge of its duties and functions.

(2)

The Authority may appoint such other committees as may be necessary for the efficient discharge of its duties and functions.

(3)

The Authority may, in consultation with the Central Government, fix the quantum of remuneration, payable to the experts and consultants.

19.

Salary, allowances and conditions of service of the Registrar-General. - (1) The Registrar-General shall be an official equivalent to the rank of the Additional Secretary to the Government of India and he shall be appointed by the Authority on deputation or transfer or on contract basis.

(2)

The Registrar-General shall be governed by the Central Government rules in respect of his salary and other allowances including pension, leave, travelling and daily allowances as are admissible to an Additional Secretary to the Government of India.

(3)

The Registrar-General shall be a person having proven managerial, or legal or Intellectual Property Rights or agricultural development experience.

(4)

The term of office of the Registrar-General shall be a period of five years or until he attains the age of sixty years, whichever is earlier:

Provided that no candidate who may not have at least two years tenure in the office shall be appointed as Registrar-General.

[* * *]

20.

The method of appointment of officers and other employees of the Authority. - (1) The Authority may make recruitment and appointment to the posts of officers specified in the Fourth Schedule.

(2)

The Authority shall after advertising the posts in the Employment News and at least one national daily recruit officers and other employees of the Authority [* * *]

(3)

[Notwithstanding anything contained in sub-rule (1), the Authority may also appoint such other officers and employees as may be required by it on transfer on deputation or on contract basis with prior approval of the Central Government.]

[Substituted by Notification No. G.S.R. 494(E), dated 15th June, 2015 (w.e.f. 12.9.2003)]

(4)

The salary, allowances and other conditions of service of the officers and employees of the Authority shall be the same as applicable to Central Government servants of equivalent rank.

(5)

If any question on the service conditions of any officer or employee of the Authority arises, it shall be decided by the Central Government.

21.

Powers and duties of the Chairperson. - (1) In addition to the duties specified in the Act, the Chairperson shall have powers of general superintendence and directions in the conduct and management of the affairs of the Authority, to enable the Authority in effectively discharging its duties and overseeing the compliance of the provisions of the Act, and the rules and regulations made thereunder.

(2)

The Chairperson shall also discharge such other duties and functions as the Authority may by general or special order in writing delegate to him or the Central Government may authorise him to discharge from time to time.

(3)

The Chairperson shall convene, preside over and conduct the meetings of the Authority and be responsible for carrying out all decisions taken by the Authority.

(4)

The Chairperson shall guide and facilitate the development of new plant varieties by protecting the rights of the breeders, researchers, farmers, and community of farmers as provided under the Act.

(5)

The Chairperson shall facilitate and act on his satisfaction for compulsory licensing of registered plant varieties and advise the Central and the State Governments on the restriction of public use of any such registered plant varieties which may invite action under sub-rule (4).

22.

General functions of the Authority. - (1) The Authority shall advice the Central Government in relation to the provisions contained in the sub-section (2) of section 29 for specifying and notifying the genera and species for the purposes of registration of new plant varieties other than extant varieties and farmers' varieties.

(2)

[The Authority shall register extant varieties under clause (a) of sub-section (2) of section 8 of section 8 of such genera or species and within such period as may be determined by it with suitable test criteria to conform distinctiveness, uniformity and stability (hereinafter referred to as DUS) of such genera or species shall be specified in the Plant variety Journal of India.]

(2A)

[The Authority shall register extant varieties (other than farmers variety), if at the date of filing of the application for registration, such variety has not been sold or otherwise disposed of for the purposes of exploitation of such variety for a period of eighteen years in case of trees and vines and fifteen years in other cases.]

[Inserted by Notification No. G.S.R. 494(E), dated 15th June, 2015 (w.e.f. 12.9.2003).]

(3)

The Authority shall develop DUS test and other test criteria and conduct such tests for characterization of each variety of crop species notified by the Central Government.

(4)

The Authority shall compile and maintain a database on all varieties of common knowledge including all registered extant and farmers' varieties and such varieties being cultivated outside India for each crop species prior to grant for

registration for new varieties belonging to such species.

(5)

The Authority shall be entitled to call for and procure the details of any crop variety under use in the country for the purpose of bringing the same into its database.

(6)

Any public or private institution, community or individual involved in the production and use of seed of such varieties shall be required to provide full information on its characteristics or and a true sample of seed of such variety.

(7)

The Authority shall keep a record of the production and sale of seed of all registered varieties.

(8)

It shall be necessary for all breeders of registered varieties to supply certified figures on annual seed production and sales to the Authority within a period not exceeding three months from the completion of such reporting period.

(9)

The Authority, if required shall also be entitled to call for such figures specifically relating to any region of the country.

[22A. Order as to costs. - The Authority or the Registrar may make such orders as to costs as enumerated under the Fifth Schedule and as considered reasonable having regard to all the circumstances of the case:

Provided that the Authority or Registrar may, in its or his discretion award compensatory costs in any proceeding before it, which in its or his opinion is false or vexatious.

22B.

Costs in uncontested opposition cases. - Where any opposition duly instituted under the rules is not contested by the applicant, the Registrar in deciding whether costs should be awarded to the opponent shall consider whether the proceeding might have been avoided if reasonable notice had been given by the opponent to the applicant before the notice of opposition was filed.

22C.

Exception to rule 22B. - Notwithstanding anything in rule 22B, costs in respect of fees specified in Second Schedule and of all stamps used on and affixed to affidavits used in the proceedings shall follow the event.]

23.

Matters to be included in the National Register of Plant Varieties. - The National Register of Plant Varieties shall contain the following particulars of each registered variety, namely:-

(1)

Registration Number;

(2)

Nationality of Breeder(s);

(3)

Denomination as granted;

(4)

Date of Grant of Registration;

(5)

Date on which application was received;

(6)

Provisional number given to the application;

(7)

Date of Gazette notification;

(8)

Grouping of the plant variety (new, extant or farmers);

(9)

Classification of the variety (typical variety, hybrid variety or essentially derived variety);

(10)

Denomination of variety, Common Crop name to which the variety belongs, Taxonomical Lineage of the Crop in Botanical names;

(11)

Key Passport data of the variety;

(12)

Essential characters making the variety distinct;

(13)

Starting date of protection;

(14)

Expiry date of protection;

(15)

Date of revocation with other details (grounds etc.);

(16)

Name and address of the applicant(s);

(17)

Address for service of document(s);

(18)

Name and address of the breeder(s) (in case breeder is not the applicant);

(19)

Name and address of the legal representative (if applicable);

(20)

Name, address and other details of the licensee and terms of license (if applicable);

(21)

Name, address and other details of the agent with jurisdiction rights, if any (if appointed);

(22)

Type of crop;

(23)

Name of the family, genus, species, variety and common name;

(24)

Name and address of the breeder of initial variety (in case of essentially derived variety);

(25)

Details of the acquisition of propagating material/seeds (if applicable);

(26)

Details of parental material used in the development (if applicable);

(27)

Name and address of the contributor(s) of genetic material (if applicable);

(28)

Any other feature specified by the Authority or Registrar-General;

(29)

Country of origin of the plant variety;

(30)

Brief description of the variety alongwith characteristic details of the nearest variety including results of DUS testing, supplemented with the drawings or photographs or both;

(31)

In case of compulsory licensing, name and address of licensee with other details (terms and conditions, revocation, etc.), if applicable;

(32)

Declaration and details of the renunciation to the variety (if applicable);

(33)

Details of benefit sharing;

(34)

Details of opposition, revocation, restoration, maintenance (whatever applicable);

(35)

In the case of varieties protected outside India prior to registration in the country, following additional information shall be

entered in the National Register of plant varieties namely:-

- (a) Name of the country(ies) where protection is made alongwith the denomination of the variety in each of them,
- (b) Date of first protection with country,
- (c) Variation in important trait with respect to first filing,
- (d) Country wherein the variety was first commercialized with date,
- (e) Any other feature specified by the Authority or Registrar-General;

(36)

In case of a convention application, the following information shall also be furnished, namely:-

- (a) Name of the convention country,
- (b) Passport date of the convention application,
- (c) Date of application,
- (d) Date of grant of registration,
- (e) Registration number,
- (f) Denomination as accepted,
- (g) Date of Gazette notification,
- (h) Starting date of protection,
- (i) Expiry date of protection,
- (j) Whether the variety has been sold or otherwise disposed of within and outside the country, if so, details thereof;

(37)

Any changes made in any entry.

Chapter III

Registration Of Plant Variety

24.

[* * *]

[Inserted by Notification No. G.S.R. 901 (E) dated 17.12.2012 (w.e.f. 12.9.2003)]

25.

Application to authorise a person to register a variety under clause (e) of sub-section (1) of section 16. - An application to authorise a person to register a variety under clause (e) of sub-section (1) of section 16 shall be made in Form PV-1, given in the First Schedule, by a person specified in sub-section (1) of that section.

26.

The fee payable under clause (g) of sub-section (1) of section 18 for making application for registration of plant variety. - The fee for making application for registration of a plant variety under section 14 shall be such as specified in column (3) of the Second Schedule for the purpose.

27.

Proof of the right of making application under sub-section (3) of section 18. - (1) Where an application for registration is made by the successor or assignee of the breeder under sub-section (3) of section 18, he shall furnish documentary

proof, at the time of making such application or within six months of making such an application, as to the right to make such an application for registration.

(2)

The documentary proof, in case of an assignment, shall be furnished in the manner specified in Form PV-2, given in the First Schedule and in case of succession, or a succession certificate or any other document in support of succession proving the applicant to be the successor shall be furnished.

28.

Fee for conducting tests under section 19. - The applicant shall deposit the requisite fee for the purpose as specified in column (3) of the Second Schedule, with the Registrar for conducting the required tests under section 19.

29.

Manner and method for conducting tests under section 19. - (1) (a) The Authority shall charge separate fees for conducting DUS test and special test on each variety.

(b)

The special tests shall be conducted only when DUS testing fails to establish the requirement of distinctiveness.

(c)

[The DUS testing shall be field and multi-location based for at least two similar crop seasons and special tests will be laboratory based:

Provided that in the case of trees and vines there shall be an option on the manner of the DUS testing that a panel of three experts shall visit the On-farm test sites for two similar crop seasons as may be specified.]

(d)

The fee for DUS and special tests shall be such as provided in column (3) of the Second Schedule for the purpose.

(2)

If the Registrar, after initial scrutiny of the application for registration, is satisfied that the application is in order, he shall notify the applicant to deposit the requisite fee, as specified in column (3) of the Second Schedule, within a period of two months for conducting the DUS test.

(3)

On receipt of the fee, demanded under sub-rule (1), the Registrar shall consider the application for further processing.

(4)

[The DUS test shall be necessary for all new and extant varieties except essentially derived varieties and for varieties notified under section 5 of the Seeds Act, 1966 (54 of 1966).

4.

(A)

The DUS criteria shall be determined based on report of the All India Coordinated Research Project trials.]

[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

[* * *]

[Omitted 'The manner of testing essentially derived varieties shall be decided by the Authority on a case-to-case basis.' by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

(6)

The DUS test shall be conducted on a minimum of two locations.

(7)

The Authority may recognize and empanel institutions having adequate facilities for conducting DUS or special tests in the country for conducting such tests.

(8)

The Authority shall notify the adopted methods of conducting the DUS and special tests.

(9)

The Authority shall develop and publish in its journal guidelines for the DUS test for each crop.

(10)

The samples of seeds or propagules in respect of which an application for registration has been made and parental lines under registration submitted for the DUS and special tests and deposited at the National Gene Bank shall present the maintainable standards of genetic purity, and uniformity and germination, sanitary and phytosanitary standards.

30.

Advertising of application for registration under section 21. - (1) Every application for registration of a variety which has been accepted and the details thereof including specifications shall, upon such acceptance under sub-section (1) of section 20, be advertised by the Registrar in the manner specified in Form O-1 of the Third Schedule.

(2)

[Before sending a variety for DUS testing, the Registrar shall publish in the Journal for the purposes of inspection by any person, the name and location of the DUS test centre where such variety will undergo the DUS testing.]

(3)

The contents of such advertisement shall include-

(a)

name, passport data and source of parental line or initial variety used to develop the variety in respect of which an application for registration has been made;

(b)

description of the variety bringing out its character profile as specified under the DUS test Schedule;

(c)

essential characteristics conferring distinctiveness to the variety;

(d)

important agronomic and commercial attributes of the variety;

(e)

photographs or drawings, if any, of the variety submitted by the applicant; and

(f)

claim, if any, on the variety.

31.

Notice of opposition under sub-section (2) of section 21. - (1) Any interested person, may within three months from the date of advertisement of an application for registration, may give a notice of opposition to the registration of a plant variety in Form PV-3 of the First Schedule.

(2)

The fee payable for filing an opposition referred to in sub-rule (1) shall be as specified in column (3) of the Second Schedule:

Provided that no such fee shall be payable in respect of an opposition made by a farmer or group of farmers, or village community.

(3)

A copy each of the notice of opposition received against a specific application shall be referred to the applicant by the Registrar within three months from the last date of filing of opposition.

(4)

An applicant shall be entitled to submit point-wise counter statement to the opposition not later than two months from the date of service of the copy of the notice of opposition, [* * *].

(5)

Every counter-statement under sub-rule (4) shall be in Form PV-4 of the First Schedule.

(6)

The copies of counter to opposition submitted by the applicant within the time specified in sub-rule (4), shall be conveyed to the person opposing the application, within a period of thirty days of its receipt, requiring the opposing person to submit the final opposition within a period of thirty days from the date of service of the counter from the applicant.

(7)

The Registrar, may at his discretion, allow any correction of error or amendments in the notice of opposition or counter-statement if such alteration is requested by the persons concerned in writing.

(8)

(a)

The security referred to in sub-section (8) of section 21 shall be payable as an amount decided by the Authority.

(b)

In case the opposition is found to be frivolous, the Registrar may direct payment of cost as determined by him to the

applicant from out of the security amount received and the balance of the security amount shall be deposited in the Authority.

(c)

In case the opposition succeeds, the security amount shall be refunded to the opposition party.

32.

[Compliance with time schedule. - The time schedule provided under these rules for notice of opposition, final opposition, evidence, intervention, written statement and reply shall not ordinarily be extended except by special order of the Authority or Registrar given on an application filed by the person seeking extension of time and on payment of the fee specified in the Second Schedule and such an application for extension shall be in Form PV-5 of the First Schedule.]

33.

Manner of submitting [* * *] or producing evidences under section 21.

(1)

Any evidence, upon which the opponent may rely, shall be submitted in duplicate to the Registrar with a copy to the applicant within one month from the receipt of counter-statement of the applicant.

(2)

Any evidence upon which the applicant may rely shall be submitted in duplicate to the Registrar with a copy to the opponent within thirty days from the date of receipt of opponent's evidence.

(3)

No further evidence shall be submitted by either party except by leave or directions of the Registrar.

(4)

The copies of all the documents, except plant variety application, referred to in the notice of opposition or in any counter-statement filed in connection with the opposition shall be in triplicate unless the Registrar directs otherwise.

(5)

Where a document, is in a language other than English, and is referred to or relied upon in the notice, statement or evidence, an attested translation in English thereof shall be furnished in triplicate.

[* * *]

[Omitted '(6) The time-limit for filing the evidence shall not ordinarily be extended except by a special order of the Registrar given on an application filed by the person seeking extension of time and on payment of the fee specified in the Second Schedule and such an application for extension shall be in Form PV-5 of the First Schedule.' by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

34.

Application for the registration of essentially derived variety under section 23. - (1) The application for registration of an essentially derived variety shall be accompanied by the following documents, namely:-

(a)

an affidavit sworn by the applicant stating that such a variety does not contain any gene or gene sequence involving terminator technology;

(b)

a statement giving details of the brief description of the characteristics of the variety to substantiate novelty, distinctiveness, uniformity and stability; and

(c)

the details of parental material used.

(2)

The application under sub-rule (1) shall be accompanied by the fee as specified for the purpose in column (3) of the Second Schedule.

35.

Manner and method for conducting test under section 2. - [The manner of testing essentially derived varieties shall be decided by the Authority on a case-to-case basis and the same shall be published in the Plant Variety Journal of India.]

36.

Certificate of registration under section 23. - The Registrar shall issue to the applicant a certificate of registration of an essentially derived variety in the manner specified in Form O-2 of the Third Schedule and send a copy of the registration to the Authority and to such other body(ies) as may be notified by the Central Government for information.

[36A. Manner for arranging production and sale of seeds of registered variety under clause (e) of sub-section 2 of Section . - (1) The breeder of a registered variety of any person entitles to produce, market and sell the seeds of a registered variety under this Act shall:-

(a)

provide the seeds or propagating material of the registered variety to the farmers in a timely manner, so as to satisfy their reasonable requirements; or

(b)

arrange for production, marketing and sale of seeds or propagating material of such registered variety to the farmers at a reasonable market price.]

Chapter IV

Registration And Benefit Sharing

37.

Certificate of registration under section 24. - (1) The certificate of registration of a plant variety, other than an essentially derived variety, under sub-section (2) of section 24 shall be in Form O-2 of the Third Schedule.

(2)

The Registrar shall issue the certificate of registration under sub-section (2) of section 24 within three years of the date of filing of application subject to the fulfilment of all other requirements.

(3)

A copy of the certificate of registration issued under sub-section (2) of section 24 shall be sent to the Authority; and to such other body or agency, which the Central Government may, by notification in the Official Gazette specify.

38.

Notice to the applicant under section 24. - (1) If, within a period of twelve months, the application for registration of a plant variety other than an essentially derived variety is not completed in the circumstances given in sub-section (3) of section 24, the Registrar shall issue thirty days notice to the applicant at the address of his principal place of business in India, or if, he has no principal place of business in India, at the address for service in India stated in the application, but if the applicant has authorised an agent for the purpose of the application, the notice shall be sent to the agent and a duplicate thereof to the applicant for filing of the application or such further time as the Registrar may allow for completion of registration.

(2)

The notice under sub-rule (1) shall be in Form O-3 of the Third Schedule.

39.

Renewal and revision of registration under section 24. - (1) (a) On receipt of an application from the applicant, the Authority may review and renew the initial duration of registration as mentioned in sub-section (6) of section 24.

(b)

Every application for review and renewal under sub-rule (1) shall be made in Form PV-6 of the First Schedule [be accompanied with fee as prescribed in the Second Schedule and filed during the period of six months] prior to the expiry of the initial period of registration.

[***]

[Omitted '(c)' by Notification No. G.S.R. 863(E), dated 20.11.2019.]

[***]

[Omitted 'sub-rules (2) and (3)' by Notification No. G.S.R. 863(E), dated 20.11.2019.]

(4)

The Authority shall within such intervals as it thinks appropriate publish a list of varieties registered as well as renewed under the Act with the particulars of the period of registration, name and address of right holders periodically in its journal [***]

[Omitted 'and in the Official Gazette' by Notification No. G.S.R. 863(E), dated 20.11.2019.]

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40.

Publication of contents of the certificate inviting claims for benefit sharing under section 26. - Upon the issuance of the registration certificate under sub-section (8) of section 23, or sub-section (2) of section 24, the Authority shall, for the purpose of inviting claims for benefit sharing under the Act, shall advertise the following details of the registration

certificate, namely:-

- (a)
the registration number alongwith the date of grant,
- (b)
the name and address of the applicant or breeder in whose name the certificate has been issued or registered,
- (c)
denomination of the variety,
- (d)
name of the family, genus, species, variety and common name,
- (e)
parentage and geographical location of the variety,
- (f)
the details of the distinguishing features or the characteristics,
- (g)
in case of "essentially derived variety", the details of the "initial variety" from which the "essentially derived variety" is claimed to have been derived,
- (h)
the name and address of the contributor, nature and amount of the contribution or the community knowledge used in the development of the plant variety,
- (i)
the terms and conditions of the agreement, if any, entered into between the breeder and the contributor,
- (j)
if the variety is sold or otherwise disposed of, details thereof.

41.

Benefit sharing claim under section 26. - (1) Upon the publication of the particulars of a certificate under sub-section (1) of section 26, a person or group of persons or firm or a non-governmental organisation can make a claim under sub-section (2) of that section for benefit sharing in Form PV-7 of the First Schedule within a period of six months from the date of such publication:

Provided that in special circumstances, the Authority may extend the time-limit beyond the period of six months.

- (2)
The person or persons or firm or the non-governmental organisation, who has made an application for benefit sharing, shall provide the following information, namely:-
 - (a)
the contribution made by the person or the group of persons or firm or community or the non-governmental organisations to the genetic development of the plant variety;
 - (b)
the capacity in which the person or the group of persons or the non-governmental organisation is making the claim for benefit sharing;
 - (c)
in case of "essentially derived varieties", the terms and conditions in which authorisation has been given;
 - (d)
the commercial viability or the actual market performance of the variety so registered.

(3)

An applicant for benefit sharing shall pay the fee as specified for the purpose, in column (3) of the Second Schedule.

42.

Opposition to a claim for benefit sharing under section 26. - (1) On receipt of a copy of the claim for benefit sharing, the registered breeder of the plant variety may accept the claim and accordingly intimate the same to the Authority within a period of three months from the date of such receipt.

(2)

In the eventuality of the plant breeder failing or defaulting to tender the intimation under sub-rule (1) within the period of three months, referred to in sub-rule (1) it shall be presumed that he has no opposition to such claim and the claim shall

be decided accordingly.

(3)

If, within a period of three months of receipt of notice of claim, the breeder of the plant variety files his opposition to the claim for benefit sharing, such an opposition shall be taken into consideration while disposing or deciding the claim for benefit sharing.

(4)

Every notice of opposition, under sub-rule (3) shall be in Form PV-8 of the First Schedule.

(5)

The Authority, upon receiving the reply from the registered breeder, shall furnish a copy of such reply to the claimant for benefit sharing.

(6)

The registered breeder or the claimant to benefit sharing shall furnish supporting document and other evidence, which shall be duly considered by the Authority while disposing of any claim for benefit sharing.

43.

Determination of benefit sharing under section 26. - The Authority shall, by order, determine the amount of benefit sharing to a variety according to clauses (a) and (b) of sub-section (5) of section 26 and taking into account the following criteria, namely:-

(a)

the contribution of the claimant in selecting, conserving and providing the genetic material,

(b)

the contribution of such genetic material in providing one or more traits which conferred high commercial value to the variety, and

(c)

the contribution of such genetic material to impart high combining ability to the parents of the hybrid variety relating to benefit sharing.

44.

Reference for recovering benefit sharing under section 26. - In case of default or failure on the part of the breeder of the variety to deposit the amount of benefit sharing in the Gene Fund, as per the order of the Authority of section 26, required under sub-section (6) within a period of three months from the date of such order, the Registrar shall make a reference to the District Magistrate under sub-section (7) of section 26 in Form O-4 of the Third Schedule.

45.

Application for registration of title of agent or licensee under section 28. - (1) An application under sub-section (4) of section 28 for registration as an agent or licensee, as the case may be, shall be made in Form PV-9 of the First Schedule.

(2)

The application for title by a licensee or an agent shall be accompanied by three attested copies of the agreement or instrument of entitlement or any other documentary evidence.

(3)

The proposed agent or licensee may also be required to produce such other documents and information as may be required by the Registrar in support of the proof of title.

(4)

The applicant under sub-section (4) of section 28 shall pay the fee as specified for the purpose in column (3) of the Second Schedule.

46.

Reference of disputes of entitlement under section 28. - (1) While referring a dispute under sub-section (4) of section 28 to the Authority for determination the Registrar shall furnish all the relevant information related to dispute with three copies of all the documents and evidence available with his office.

(2)

On receipt of an order of the Authority in respect of the dispute, the Registrar shall furnish copies of the order to the persons involved for necessary compliance.

47.

Certificate of registration of entitlement under section 28. - The certificate of registration to be issued to a registered licensee or an agent by the Registrar under sub-section (4) of section 28 shall be in Form O-5 of the Third Schedule.

48.

Application and procedure for varying or cancelling terms of registration under section 28. - (1) An application under clauses (a), (b), (c), (d) or (e) of sub-section (9) of section 28 for variation or cancellation of the terms of registration of a registered breeder or his successor or any other person shall be in Form PV-10 of the First Schedule.

(2)

Every applications under sub-rule (1) shall be accompanied by a fee as specified for the purpose in column (3) of the Second Schedule.

49.

Notice and proceedings under section 28. - (1) The Registrar shall issue notice of every application under sub-section (10) of section 28 in Form O-6 of the Third Schedule to the registered breeder or the agent or the licensee.

(2)

Any person to whom a notice has been issued under sub-rule (1) and who intends to oppose or intervene in any proceedings under section 28, shall, within three months of the receipt of such notice, give notice of opposition or intervention to the Registrar in Form PV-11 of the First Schedule.

(3)

On receipt of a notice of opposition or intervention the Registrar shall furnish a copy of it to the applicant.

(4)

The Registrar may accept or refuse the application or accept it subject to any condition, modification or limitation as directed by the Authority and shall inform the parties in writing accordingly.

Chapter V

Surrender And Revocation Of Certificate Of Registration And Rectification And Correction Of Register

50.

Surrender of certificate of registration under section 33. - The registered breeder may at any time, by giving notice to the Registrar offer to surrender his certificate of registration of plant variety in the Form PV-12 of the First Schedule, under sub-section (1) of section 33.

51.

Procedure on application for surrender of certificate of registration under section 33. - (1) The Registrar shall give notice in Form O-7 of the Third Schedule, every notice of offer made under rule 50 to the registered agent or the licensee relating to such certificate.

(2)

(a)

Any person who has been given a notice of surrender of certificate of registration under sub-rule (1), who intends to oppose the surrender, shall within three month of the receipt of such notice, give notice of opposition to the Registrar in Form PV-13 of the First Schedule, and shall send therewith a written statement setting out the nature of the opponents' interest, the facts relied upon alongwith the notice of opposition.

(b)

The Registrar shall thereupon serve the notice of opposition alongwith the written statement received by him to the applicant.

(3)

If the applicant desires to contest the opposition, he shall file or leave at the appropriate office a reply statement setting out fully the grounds upon which the opposition is contested, within a period of three month from the date of receipt of the copy of the written statement by him under sub-rule (2) and deliver to the opponent a copy thereof.

(4)

The applicant or any person to whom a notice under sub-rule (1) has been issued may, make an application to the Registrar in Form PV-14 of the First Schedule, for seeking an opportunity of being heard.

(5)

On receipt of an application, under sub-rule (4), the Registrar may fix the time and place of hearing and issue notice to the parties accordingly and the interested parties may appear and give or file evidence in support of their case.

(6)

The Registrar may accept or refuse the application or accept it subject to any condition, amendments, modifications or limitations and shall, accordingly, inform the parties in writing.

(7)

If the Registrar accepts the registered breeder's offer of surrender of the plant variety, he shall by order direct the registered breeder to return the certificate of registration and on receipt of such certificate, the Registrar shall, by order, notify the surrender in the Official Gazette.

52.

Application for revocation of protection granted to a breeder under section 34. - Any person may make an application to the Authority in Form PV-15 of the First Schedule, for revocation of protection granted to a breeder in respect of a variety on any of the grounds laid down under clauses (a) to (h) of section 34.

53.

Procedure on application for revocation under rule 52. - (1) The Authority shall issue notice in Form O-8 of the Third Schedule, to the registered breeder of any application received by it under rule 52.

(2)

(a)

In case the registered breeder intends to oppose the application for revocation of protection, he shall, within three months from the date of receipt of such notice, give notice of opposition to the Authority in Form PV-16 of the First Schedule, and shall send therewith a written statement, setting out the facts upon which he bases his case and the relief sought.

(b)

The Registrar shall serve the notice of opposition alongwith the written statement received by him to the applicant.

(3)

If the applicant desires to contest the opposition, he shall file or leave at the appropriate office, a reply setting out the grounds upon which the opposition is contested, within a period of three months from the date of receipt of the copy of the written statement by him under sub-rule (2) and deliver to the opponent a copy thereof.

(4)

(a)

The applicant and the registered breeder may make an application to the [Journal] in Form PV-17 of the First Schedule, seeking an opportunity of being heard.

(b)

The [Journal]

[Substituted 'Registrar' by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

may, on receipt of such application, fix such time and place for hearing and issue notice to the parties accordingly and the interested parties may appear and give or file evidence in support of his case.

(c)

The [Journal]

[Substituted 'Registrar' by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

may, accept or refuse the application or accept it subject to any condition, amendments, modifications or limitations and shall, accordingly inform the parties in writing.

(5)

If the Authority accepts the application for revocation of the plant variety, it may direct, by order, the registered breeder to return the certificate of registration and on receipt of such a certificate, the Registrar shall by order notify the revocation of the plant variety in the [Journal]

[Substituted 'Official Gazette' by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

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54.

Payment of annual fee for retention of registration under section 35. - The registered breeder, agent and licensee shall pay an annual fee for retention of registration at such rate as specified for the purpose in column (3) of the Second Schedule.

55.

Application for cancellation or change of certificate of registration under section 36. - (1) Any person may make an

application for changing the certificate of registration on the grounds laid down under sub-section (1) of section 36 to the Registrar.

(2)

Every application under sub-rule (1) shall be made in Form PV-18 of the First Schedule and shall be accompanied by a statement of the grounds on which it is made.

56.

Procedure on application for cancellation or change of certificate of registration under section 36. - The Registrar may accept or refuse the application or accept it subject to any condition, amendment, modification or limitation as he may think fit to impose and shall inform the concerned parties in writing accordingly:

Provided that no application shall be rejected unless the applicant has been given a reasonable opportunity to make a representation against such rejection.

57.

Application to rectify the register under section 36. - Any person may make an application to the Registrar, in Form PV-19 of the First Schedule, stating the grounds on which it is made, for making, expunging or varying the entry on the grounds laid down under sub-section (2) of section 36.

58.

Procedure on application to rectify the register under rule 57. - The Registrar may accept or refuse the application for making, expunging or varying the entry or accept it subject to any condition, amendment, modification or limitation as he may think fit to impose and shall inform the concerned parties in writing accordingly:

Provided that no application shall be rejected unless the applicant has been given a reasonable opportunity to make a representation against such rejection.

59.

Cancellation or change of registration or rectification of the register by the Registrar under section 36. - (1) The Registrar while exercising the powers under sub-section (4) of section 36 to cancel the registration, may make changes to the registration, or in case of rectification of the register, shall give notice in Form O-9 of the Third Schedule to the registered breeder, agent or licensee, if any, and to any other person who appears to the Registrar to have any interest in the plant variety, and shall state the grounds on which the Registrar intends to take any action.

(2)

If any person who has been given a notice under sub-rule (1) intends to oppose the action of the Registrar, he shall within three month from the date of the receipt of such notice, give the notice of opposition to the Registrar in Form PV-20 of the First Schedule, and shall send therewith a written statement setting out the facts upon which he bases his case and the relief sought for.

(3)

The Registrar after hearing the person to whom a notice under sub-rule (1) has been given may pass such order as he may think fit and shall, accordingly, inform the parties in writing.

60.

Application for correction of register by the registered breeder under section 37. - An application for correction of the register may be made by the registered breeder of the plant variety to the Registrar under sub-section (1) of section 37 in Form PV-21 of the First Schedule, for making any change as laid down in clauses (a) to (c) of sub-section (1) of that section.

61.

Procedure on application for correction of the register under rule 60. - The Registrar may accept or refuse the application made under rule 60 for correction of register or accept it subject to any condition, amendments, modifications or limitations as he may think fit and shall, accordingly, inform the parties in writing.

62.

Application for correction of the register by the registered agent or licensee under section 3. - An application for correction of the Register may also be made by the registered agent or the licensee to the registrar under sub-section (2) of section 37 in Form PV-22 of the First Schedule on the grounds laid down in sub-section (2) of that section.

63.

Procedure on application for correction of the register under rule 6. - (1) The Registrar shall issue notice of every application under rule 62 in Form O-10 of the Third Schedule, to the registered breeder.

(2)

The Registrar may accept or refuse the application or accept it subject to any condition, amendment, modification or limitation he may think fit and shall, accordingly, inform the parties in writing, provided that tests referred to in sub-section (3) of section 23 shall be conducted by the Authority in consultation with the Central Government:

Provided that no application shall be rejected unless the applicant has been given a reasonable opportunity to make a representation against such rejection.

64.

Alteration of denomination of a registered variety under section 3. - (1) An application, to delete any part or to add or to alter the denomination of a registered variety, under sub-section (1) of section 38, shall be made by the breeder to the Registrar in Form PV-23 of the First Schedule.

(2)

The Registrar may determine whether and subject to what conditions, if any, the amendments shall be allowed.

(3)

(a)

The Registrar shall advertise the application for alteration in denomination in the Gazette or a journal or a daily newspaper and shall also advertise the nature of the proposed alteration in the denomination therein.

(b)

The Registrar shall issue notice to all the persons, who, in his opinion, may have an interest in the matter.

65.

Procedure on application for alteration of denomination under rule 6. - (1) Any interested person may, within three months from the date of advertisement of an application for alteration in denomination of a registered variety, under sub-section (2) of section 38, give a notice of opposition to the proposed change in denomination of a registered variety in Form PV-24 of the First Schedule.

(2)

The Registrar shall serve a notice to the breeder about the opposition received for the proposed change in denomination and shall give an opportunity to both the parties of being heard, if so desired, before deciding the matter.

(3)

In the event of leave being granted for alteration of denomination, the denomination as so altered shall be advertised in Gazette or a journal or a daily newspaper in Form O-11 of the Third Schedule.

Chapter VI

Farmers' Rights

66.

Claim for compensation under section 3. - (1) Any farmer, group of farmers or the organisation of the farmers may make an application, under sub-section (2) of section 39, to the Authority to claim compensation.

(2)

Every application under sub-rule (1) shall be in Form PV-25 of the First Schedule.

67.

Procedure on application for claim for compensation under rule 6. - (1) The Authority shall give notice to the registered breeder about the compensation claim received in respect of the registered variety.

(2)

After receiving a notice from the Authority under sub-rule (1), the registered breeder may, within three months from the date of receipt of such notice, file notice of opposition in Form PV-26 of the First Schedule.

(3)

In the eventuality of the breeder failing or defaulting to tender his opposition, within a period of three months, from the date of receipt of the notice for compensation, it shall be presumed that he has no opposition to such claim and accordingly such claim shall be decided.

(4)

The Authority shall, upon receiving opposition from the breeder give opportunity to both the parties of being heard and may direct the breeder to pay such compensation to the farmer, the group of farmers or the organisation of the farmers, as the case may be as it deems fit.

68.

Issue of notice under section 4. - (1) On receiving the report from the centre notified under sub-section (1) of section 41, in respect of claims filed by a person or group of persons or governmental or non-governmental organisation, for compensation to the people of any village or local community for their contribution in the development of new variety, and if satisfied, the Authority may issue notice to the registered breeder or his assignee or registered agent in Form O-12 of the Third Schedule.

(2)

Upon receiving the notice from the Authority, the registered breeder or his assignee or registered agent may file objection to the claim for compensation within three months in Form PV-27 of the First Schedule.

(3)

The Authority, upon receiving objection from the registered breeder or his assignee or registered agent, shall give opportunity of being heard to both the parties and after deciding on the eligibility for and quantum of compensation shall, direct, the breeder to pay compensation to the person, the group of persons or governmental or non-governmental organisation which has made the claim under sub-section (1) of section 41 and deposit the requisite funds within a period of two months with the Gene Fund.

69.

Manner of receiving benefit sharing under section 4. - The breeder of a variety or essentially derived variety shall deposit the amount of benefit sharing, as required under sub-section (6) of section 26, with the Gene Fund.

70.

Manner of applying the Gene Fund under section 4. - (1) The Authority shall pay the amount of benefit sharing, compensation required for use of genetic material towards evolution of new and essentially derived variety, to meet expenditure incurred for conservation and sustainable use of genetic resources and for the framing of schemes related to benefit sharing.

(2)

The Gene Fund shall be applied for meeting the following purposes in accordance with the priority made hereunder:-

(a)

to support and reward farmers, community of farmers, particularly the tribal and rural communities engaged in conservation, improvement and preservation of genetic resources of economic plants and their wild relatives, particularly in areas identified as agro-biodiversity hot spots;

(b)

for capacity building on ex situ conservation at the level of the local body, particularly in regions identified as agro-biodiversity hot spots and for supporting in situ conservation;

(c)

on benefit sharing and compensation in accordance with sub-section (5) of section 26 and sub-section (3) of section 41; and

(d)

on transaction cost of administering the Gene Fund.

Chapter VII

Compulsory License

71.

Compulsory licensing under section 4. - (1) Any interested person may, after the expiry of three years from the date of issuance of a certificate of registration of a variety make an application to the Authority, in the Form PV-28 of the First Schedule alongwith the fee specified under the Second Schedule under sub-section (1) of section 47 for grant of compulsory license.

(2)

The application for compulsory license under sub-section (1) shall-

(a)

specifies particulars of variety denomination, generic and specific name of the variety or varieties concerned,

(b)

contain the grounds for issue of compulsory license with supporting documents, and

(c)

be supported by-

- (i) qualification, technical and financial capabilities of the person making such request with evidence,
- (ii) particulars of the holder of the right to the variety,
- (iii) written evidence that the person, making such request, has exhausted all measures for voluntary license.

(3) If after considering the application under sub-rule (1), the Authority is satisfied that a prima facie case has not been made for grant of compulsory license, it shall notify the applicant accordingly.

(4) On receipt of an application for grant of compulsory license under sub-rule (1), the Authority shall serve notice to the breeder of such variety or his assignee or registered agent inviting his opposition within one month from the receipt of such notice.

(5) On receiving a notice under sub-rule (4), the registered breeder or his assignee or registered agent may give notice of opposition in Form PV-29 of the First Schedule, which shall be supported by documentary proof to substantiate the ground or grounds of opposition.

(6) If after giving an opportunity to both the parties of being heard, the Authority is satisfied that there is a need for the grant of compulsory license, he may order the breeder or his assignee or registered agent to license the variety on such terms of royalties and other remuneration as it may deem fit.

72. Manner of making material available under section 5. - The Authority shall make available to the licensee of such compulsory license, the reproductive material of the licensed variety from the Gene Bank or any other centre, including the initial breeder of such variety.

73. Revocation of compulsory license under section 5. - (1) (a) Any person in respect of compulsory license aggrieved may, under sub-section (1) of section 52, make an application in Form PV-30 of the First Schedule to the Authority, for revocation of compulsory license on any of the grounds specified in sub-section (1) of section 47 or section 52.

(b) The application under sub-rule (1), shall be supported by evidence.

(2) The Authority on its own motion or on receipt of the application from the aggrieved person under sub-rule (1), may give notice to the licensee.

(3) The licensee may file an opposition to an application under sub-rules (1) or a proceeding under sub-rule (2), in Form PV-31 of First Schedule with the Authority.

(4) The Authority shall after considering the opposition filed under sub-rule (3) and after giving an opportunity to the licensee of being heard passing an order of revocation or refuse to grant such order.

Chapter VIII

Finance, Accounts And Audit

74. Financial and administrative powers of the Chairperson under section 6. - (1) The Chairperson shall exercise such financial and administrative powers over the functions of the Authority as are exercisable by a Head of Department under the General Financial Rules in accordance with the accounts and financial rules of the Government of India.

(2) The Chairperson may, delegate such financial and administrative powers in writing as he may deem fit, to a member or any subordinate officer of the Authority not below the rank of a Registrar or equivalent subject to the condition that the member or officer so authorised shall, write exercise such delegated powers continue to be under the direction, control and supervision of the Chairperson.

[74A. Form for preparing annual statement of account. - The form for preparing annual statement of accounts shall be as specified by the Comptroller and Auditor-General of India for Central autonomous bodies.]

Chapter IX

Miscellaneous

75.

Manner of authorising registered agent or registered licensee under section 8. - (1) A breeder of a variety or its propagating material or essentially derived variety or its propagating material registered under the Act, may make an application under section 81, in Form PV-32 of the First Schedule, for authorising the registered agent or registered licensee or his assignee to institute appropriate proceedings in any Court of law on his behalf.

(2)

Where any authorisation has been made under sub-rule (1), the service upon the agent of any document relating to any proceeding or matter under the Act or these rules shall be presumed to be a service upon the person so authorising him; and all communications directed to be made to a person in respect of any proceeding or matter may be addressed to such agent, and all appearances before the Authority relating thereto may be made by or through such agent.

(3)

Notwithstanding any thing contained in sub-rules (1) and (2), the Authority may, if it considers necessary, require the signature or presence of an applicant, opponent or party to such proceeding or matter.

76.

[Manner of issuing certified copy under section 83 and fee payable for obtaining a certified copy for inspection under section 84.]

- Any interested person may, under section 84, make an application in Form PV-33 of the First Schedule, alongwith fee specified in the Second Schedule, to the Authority or Registrar for obtaining certified copies of any entry in the Register, certificates or extracts of plant variety application or other records maintained by the Authority and any document required in any proceedings under this Act and pending before such Authority or Registrar; and he may make a request in similar manner and for similar purpose to inspect such entry or document.

FIRST SCHEDULE

[See rule 3(1)]

FORMS

Form

number

Sections

and Rules

Title

(1)

(2)

(3)

PV 1

Section 16(1)(e) and

Rule 25

Application for
authorization.

PV 2

Section 18(3) and

Rule 27(2)

Proof of Right to
file Application

PV 3

Section 21(2) and

Rule 31(1)

Notice of Opposition

PV 4

Section 21(4) and
Rule 31(5)
Counter Statement
PV 5
Section 21 and Rule
33(6)
Request for Extension
of Time
PV 6
Section 24(6) and
Rule 39
Renewal of
Registration
PV 7
Section 26(2) and
Rule 41
Benefit Sharing
Application
PV 8
Section 26(3) and
Rule 42
Notice of Opposition
PV 9
Section 28(4) and
Rule 45
Registration as an
Agent or Licensee
PV 10
Section 28(9) and
Rule 48
Application for
Variation/Cancellation of the term of Registration
PV 11
Section 28(10) and
Rule 49
Notice of Opposition
against variation/cancellation of the term of Registration
PV 12
Section 33(1) and
Rule 50
Application to
Surrender the Certificate of Registration of a Plant Variety
PV 13
Section 33(3) and
Rule 51(2)
Notice of Opposition
for offer to surrender the Certificate
PV 14
Section 33(4) and
Rule 51(4)
Notice of Intention

to attend Hearing

PV 15

Section 34 and Rule

52

Application to Revoke

Certificate of Registration

PV 16

Section 34 and Rule

53

Notice of Opposition

to application to Revoke Certificate of Registration

PV 17

Section 34 and Rule

53(4)

Application for an

opportunity of being heard

PV 18

Section 36(1) and

Rule 55

Application for

Cancellation or Change of the Certificate of Registration of a

Plant Variety

PV 19

Section 36(2) and

Rule 57

Application for

correction in National Plant Variety Register

PV 20

Section 36(4) and

Rule 59

Notice of Opposition

for Application for correction in National Plant Variety Register

PV 21

Section 37(1) and

Rule 60

Application for

correction in National Plant Variety Register by Owner/Breeder

PV 22

Section 37(2) and

Rule 62

Application for

correction in National Plant Variety Register by Registered agent

or Licensee

PV 23

Section 38(1) and

Rule 64

Application to alter

Denomination of a Registered Plant Variety

PV 24

Section 38(2) and

Rule 65

Notice of Opposition
to Application to alter Denomination of a Registered Plant
Variety
PV 25

Section 39(2) and
Rule 66
Application for
Claiming Compensation
PV 26

Section 39(2) and
Rule 67(2)
Notice of Opposition
to Application for Claiming Compensation
PV 27

Section 41(3) and
Rule 68
Notice of opposition
to application for claiming compensation
PV 28

Section 47(1) and
Rule 71(1)
Application for Grant
of Compulsory Licence
PV 29

Section 47(3) and
Rule 71(5)
Notice of Opposition
to an application for Grant of Compulsory Licence
PV 30

Section 52(1) and
Rule 73(1)
Application for
Revocation of Compulsory Licence
PV 31

Section 53 and Rule
73(3)
Notice of Opposition
for Application for Revocation of Compulsory Licence
PV 32

Section 81 and Rule
75(1)
Form of Authorization
to Institute Suit
PV 33

Section 84 and Rule
76
Request for Certified
Copy

[Second Schedule]

[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

(See rule 8)

Fee

Sl. No.

Fee payable on matters

Amount of fee

Form number

(1)

(2)

(3)

(4)

1.

Conducting tests

(1) Depend on the nature and type of test subject to a maximum of Rs.2,00,000/- per entry

(2) For On-farm DUS testing, fee shall depend on the location of DUS test sites subject to a maximum of four times of the fee specified for item (1)

2.

Notice of opposition

Rs.10,000/-

PV3

3.

Counter statement

Rs. 2,000/-

PV4

4.

Extension of time

Rs. 5,000/- per month

PV5

5.

Fees for registration of essentially derived varieties

Individual-Rs.7,000/-Educational-Rs.10,000/-Commercial-Rs.50,000/-

6.

Fees for registration of extant variety as notified under section 5 of the Seeds Act, 1966 (54 of 1966)

Rs.2,000/-

7.

Fees for registration of any variety of the genera and species other than extant varieties and farmers' varieties as specified in clause (a) of section 14 read with sub-section (2) of section 29 of the Act.

Individual-Rs.7,000/-Educational-Rs.10,000/-Commercial-Rs.50,000/-

8.

Fees for registration of a variety about which there is common knowledge i.e., the extant variety as specified under clause (j)(iii) of section 2 of the Act.

Individual-Rs.7,000/-Educational-Rs.10,000/-Commercial-Rs.50,000/-

9. [
[Substituted by Notification No. G.S.R. 863(E), dated 20.11.2019.]
Renewal fee
Individual - Rs 10,000/-Educational- Rs
20,000/-Commercial - Rs 1,00,000/-One lump sumFarmers-Nil
PV-6]
10.
Application for benefit sharing
Rs.10,000/-
PV7
11.
Notice of opposition for benefit sharing
Rs.5,000/-
PV8
12.
Application for registering as agent/licensee
Rs.15,000/-
PV9
13.
Application for variation/ cancellation of the terms of
registration
Individual ? Rs.3,000/-Educational ?
Rs.5,000/-Commercial - Rs.10,000/-
PV10
14.
Notice of opposition to application for variation/
cancellation of terms of registration
Rs.5,000/-
PV11
15.
Application of surrender of certificate of registration of
plant variety
Rs. 5,000/-
PV 12
16.
Notice of opposition for offer to surrender the certificate
Rs. 5,000/-
PV 13
17.
Application to revoke certificate of registration
Rs. 20,000/-
PV 15
18.
Notice of opposition to application to revoke certificate of
registration
Rs. 5,000/-
PV 16
19.
Application for cancellation or change of the certificate of
registration of a plant variety
Rs. 10,000/-

PV 18

20.

Application for correction in National Plant Variety Register

Rs. 10,000/-

PV 19

21.

Notice of opposition for application for correction in

National Plant Variety Register

Rs. 5,000/-

PV 20

22.

Application for correction in National Plant Variety Register

by owner/breeder

Rs. 10,000/-

PV 21

23.

Application for correction in National Plant Variety Register

by registered agent or licensee

Rs. 5,000/-

PV 22

24.

Application to alter denomination of a registered plant

variety

Rs. 20,000/-

PV 23

25.

Notice of opposition to application to alter denomination of

a registered plant variety

Rs. 10,000/-

PV 24

26.

Notice of opposition to application for claiming compensation

Rs. 5,000/-

PV 26

27.

Notice of opposition to application for claiming compensation

Rs. 5,000/-

PV 27

28.

Application for grant of compulsory license

Rs. 25,000/-

PV 28

29.

Notice of opposition to an application for grant of

compulsory licence

Rs. 10,000/-

PV 29

30.

Application for revocation of compulsory licence

Rs. 10,000/-

PV 30

31.

Notice of opposition for application for revocation of compulsory licence

Rs. 5,000/-

PV 31

32.

Request for inspection of entry in Plant Varieties Register under section 84

Rs. 1000/- (per entry)

PV 33

33.

Request for certified copies under section 84

Rs. 500/- per page.

PV 33

THIRD SCHEDULE

[See rule 2(C)]

FORMS TO BE USED BY REGISTRAR AND THE CENTRAL GOVERNMENT

Form number

Sections and Rules

Title

(1)

(2)

(3)

0-1

Section 21(1) and Rule 30

Form of Advertisement

0-2

Sections 23(8) and 24(2) and Rules 36, 37

Certificate of registration

0-3

Section 24(3) and Rule 38

Notice for non-completion of registration

0-4

Section 26(7) and Rule 44

Reference to District Magistrate for collection of benefit sharing amount

0-5

Section 28(4) and Rule 47

Certificate of registration as agent/licensee

0-6

Section 28(10) and Rule 49

Notice to breeder/agent/licensee

0-7

Section 33(2) and Rule 51

To notify offer made for surrender of registered variety

0-8

Section 34 and Rule 53

Notice of application for revocation of registered variety

0-9

Section 36(4) and Rule 59

Change in National Register

O-10

Section 37(2) and Rule 63
Correction in National Register

O-11

Section 38(2) and Rule 65(3)
Advertisement of Alteration in Denomination

O-12

Section 41(1) and Rule 68
[Notice for compensation towards communities' rights.]
[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]
[Fourth Schedule]
[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]
[See rule 20(1)]

Serial Number

Name of post.

Number of post.

Equivalent post under the Central Government.

Pay band or grade pay or pay scale.

(1)

(2)

(3)

(4)

(5)

1.

Financial Advisor

1

Director

Pay band-4 (Rs. 37400-67000) with grade pay of Rs. 8700/-.

2.

Legal Advisor

2

Under Secretary

Pay band-3 (Rs. 15600-39100) with grade pay of Rs. 6600/-.

3.

Senior Accounts Officer

1

Under Secretary

Pay band-3 (Rs. 15600-39100) with grade pay of Rs. 6600/-.

4.

Plant Variety Examiner

2

Section Officer

Pay band-3 (Rs. 15600-39100) with grade pay of Rs. 5400/-.

5.

Senior Technical Officer

5

Assistant

Pay band-2 (Rs.9300-34800) with grade Pay of Rs. 4600/-.

6.

Technical Assistant

1

Technical Assistant

Pay band-2 (Rs. 9300-34800) with grade pay of Rs. 4200/-.

7.

Computer Assistant

6

Technical Assistant

Pay band-2 (Rs. 9300-34800) with grade pay of Rs. 4200/-.

8.

Executive Assistant

2

Technical Assistant

Pay band-2 (Rs. 9300-34800) with grade pay of Rs.4200/-.

THE FIFTH SCHEDULE

Scale of costs allowable under section 11(b) in respect of proceedings before the Authority or the Registrar

Sl.No.

Matters in

respect of which costs to be awarded

Amount

1.

For one day's

hearing involving examination of witnesses

Rs. 1500

2.

For one day's

hearing when there is no examination of witnesses.

Rs. 750

3.

For adjournment of

hearing granted on the Petition of any party.

Rs. 2000 plus

actual cost for petition for resummoning the other parties'

witnesses who were due to be examined on the day.

4.

For striking out

scandalous matter from an affidavit

Rs. 500

5.

For (a) attendance

of witnesses(b) Subsistence allowance(c) travelling

allowance

Rs. 1000 (vide

note below)The fare by rail or air or steamer for the first

class or the second class each way and if there is no rail or

steamer communication Rs. 15 or Rs. 10 per km. depending upon the

rank and status of the witness :Provide that the rates of

subsistence allowance for witness shall vary according to the

status of the witness subject to the maximum prescribed".

FORM PV-1

(See rule 25)

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001 AUTHORIZATION FORM

I/We

----- hereby
authorise-----

-----, to act on my/our behalf in connection with filing of new
variety/essential derived variety/extant variety in respect of and
request that all notices, requisitions and communication relating thereto may be sent to such person(s) at the above
address(es) unless otherwise specified.

I/We hereby revoke all previous authorisation, if any made, in respect of same matter or proceeding.

Dated this day of. 20

Signature(s) and name of person(s) making this authorisation along with the designation and/or official seal, if any.
To,

The Registrar

The Plant Varieties Registry

At.

Note.-No Fee

1. Insert the Name(s) (in full), address(es) and nationality of the person(s) making this authorisation.
2. Insert Name(s) (in full), address(es) and nationality of the person(s) authorised.
3. Name (common/botanical) of the plant variety, and crop.

FORM PV-2

[See rule 27(2)]

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

PROOF OF RIGHT TO MAKE APPLICATION

I/We [-----]

[Insert (in full) name, address and nationality]

referred to in this application as claiming to be the breeder or plant variety right holder hereby declare that the
applicant(s) who has/have signed this application is/are my/our assignee(s) or successor(s).

I/We hereby enclose herewith the following documents as required under rule 27(2):-

1.
2.
3.

I/We hereby declare that the information given above is true and correct to the best of my/our knowledge and belief.

Dated this day of 20

Signature.....

Signatures of two witnesses along with their names and addresses :-

- 1.
- 2.

I/We also hereby declare that the information given above are true to the best of my/our knowledge and belief.

Dated this day of 20

Signature

Note.-Strike out whichever is inapplicable.

To

The Registrar

The Plant Varieties Registry

At.

- 1.
2. To be signed by the Breeder or true Plant Variety Right holder(s).

FORM PV-3

(See rule 31(1))

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

NOTICE OF OPPOSITION

I/We [-----], hereby give notice of opposition to the

application for registration of plant variety registration No. [.....]

[Registration number as advertised.]

....., published on for the following reason(s):-

1.
2.
3.

Dated this day of 20

Signature [.....]

[Signature of the person(s) filing notice of opposition]

To,

The Registrar

Plant Varieties Registry

At

FORM PV-4

[See rule 31(5)]

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

FORM OF COUNTER-STATEMENT

In the matter of opposition to the application No for the registration of a plant variety having registration No , published on

I/We [.....]

[Insert the name(s) (in full), addressees) and nationality of the person(s) making this authorisation]

the applicant(s) for registration of the above plant variety hereby give notice that the following are the grounds on which I/we rely for my/our counter statement :-

1.
2.
3.

I/We admit/disagree with the following claims/allegations/contentions in the notice of opposition

All communications in relation to these proceedings may be sent to the following address in India :-[.....]

[Insert Name(s) (in full), addressees) and nationality of the person(s) authorised]

Dated this day of 20

[.....]

[Signature of the applicant or his agent or assignee.]

To

The Registrar

The Plant Varieties Registry

At.

[Form PV - 5]

[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

[See rule 32]

The Protection of Plant Varieties and Farmers' Right Act, 2001

Request for Extension of Time

I/ We1 hereby request for extension of time for months under rule 32 for filing

In respect of application No.

The reason for making this application is/ are follows:-

1.
2.

My/ address for service in India is as follows:-

.....

Dated this day of 20

Signature2

To

The Authority

The Plant Varieties Registry

At

1. Insert the Name (in full), address and nationality of the Applicant.

2. To be signed by the Applicant(s).

FORM PV-6

[See rule 39(1)(b)]

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

APPLICATION FOR RENEWAL OF REGISTRATION OF PLANT VARIETIES

I/We [.....]

[Insert the full name with surname and address of the applicants]

apply for the renewal of the plant variety registration No dated in respect of the plant variety [.....]

[Name of the registered plant variety]

, having denomination

The notice of renewal of the registration may be sent to the following address in India :-

Dated this day of 20

Signature [.....]

[Signature of the applicant(s).]

To

The Registrar

The Plant Varieties Registry

At

FORM PV-7

[See rule 41(1)]

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

APPLICATION FOR BENEFIT SHARING

I/We [.....]

[State full name and address as stated in the application for registration]

hereby apply that my/our name(s) may be registered as person(s) entitled to benefit sharing in respect of the plant variety, registration No

The grounds for my/our being entitled to benefit sharing are given below :

1.

2.

The details of the plant variety in respect of which I/we am/are claiming benefit sharing are as follows :-

[Plant variety, of which the registration Number is]

[Name (common/botanical) of the plant variety and crop]

And in proof of my/our entitlement to benefit sharing whereof I/we transmit the accompanying documents [.....]

[Specify the particulars of such documents, giving its date, and parties to the same and showing how the claim made is substantiated]

with a certified copy thereof.

My/our address for service in India is [.....]

[State the name of the place of the appropriate office of the Plant Variety Registry.]

Dated this day of 20

Signature [.....]

[Signature of the Applicant or of his agent or assignee]

To

The Registrar

The Plant Varieties Registry

At.

FORM PV-8

[See rule 42(4)]

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

NOTICE OF OPPOSITION TO AN APPLICATION FOR BENEFIT SHARING

I/We [.....]

[Insert the name (in full), address and nationality of the applicant]

, hereby give notice of opposition to the Application for benefit sharing made by/on behalf of [.....]

[The name(s) of the person(s) who has has failed benifit sharing application]

and in respect of the registered plant variety, registration No dated

The grounds on which the said application for benefit sharing is opposed are as follows:-

1.
2.
3.

In support of my/our opposition, I/we hereby enclose herewith copies of the following documehts :-

1.
2.
3.

My/our address of service in India is

Dated thisday of..... 20

Signature [.....]

[To be signed by the Applicant(s)]

To

The Registrar

The Plant Varieties Registry

At.

FORM PV-9

[See rule 45(1)]

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

APPLICATION FOR REGISTRATION AS AN AGENT OR LICENSEE

I/We [.....]

[Insert Name (in full), address and nationality of the persons entitled to benefit sharing]

hereby apply for registration as an agent or licensee under sub-section (4) of section 28 of the Protection of Plant Varieties and Farmers' Rights Act, 2001.

I/We hereby declare that I/we am/are an authorised agent or licensee in respect of the plant variety [.....]

[Denomination, variety, registration number and other details of the plant variety(ies) in respect of which benefit sharing is claimed]

, registration No and that I/we am/are fully eligible to be a registered agent or licensee under section 28 of the Protection of Plant Varieties and Farmers' Rights Act, 2001 (53 of 2001

) and the rules made therein. Given below are my/our particulars :-

1. Name in full beginning with surname (in capital letters)
2. Address of the place of residence
3. Father's Name
4. Nationality
5. Date and place of birth
6. Occupation in full
7. Principal place of business

8. Address of the branch office, if any

9. Documents enclosed:[

1.

2.]

I/we also hereby declare that the information given above are true to the best of my/our knowledge and belief.

Dated thisday of 20

Signature [.....]

[To be signed by the Applicant(s) or authorised licensee(s) or agent(s) or legal successor(s) or assignee(s)]

To

The Registrar

The Plant Varieties Registry

At

FORM PV-10

(See rule 48)

THE PROTECTION OF PLANT VARIETIES AND FARMERS' RIGHTS ACT, 2001

Application For Variation/cancellation Of The Terms Of Registration

I/We [.....]

[Insert Name (in full), address and nationality]

hereby declare-

1. that I/We is/ are registered breeder(s)/licensee/agent of the plant variety registration No ,

2. that the registration of the plant variety was done by an order of the Registrar dated ,

3. that the grounds for variation or cancellation of the terms of registration are as follows :-

(a)

.....

(b)

.....

I/We hereby declare that the terms and conditions of the registration certificate may be cancelled/revised as follows :-

I/We hereby declare that the facts and matter stated herein are true to the best of my/our knowledge, information and belief.

Dated this day of 20

Signature [.....]

[To be signed by the Breeder or true Plant Variety Rights Holder(s)]

To

The Registrar

The Plant Varieties Registry

At

FORM PV-11

(See rule 49)

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Notice Of Opposition To An Application For Variation Or Cancellation Of Registration

I/We [.....]

[Insert name (in full), address and nationality]

hereby give notice of opposition to the application for variation/cancellation of the terms of the plant variety registration

No datedfor the plant variety, having denomination

The grounds on which the said application is opposed are as follows:

1.

2.

3.

My/our address of service in India is

Dated this day of.. 20

Signature.....

To

The Registrar

The Plant Varieties Registry

At.

FORM PV-12

(See rule 50)

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Application Of Offer To Surrender The Certificate Of Registration By The Registered Breeder Of The Plant Variety

In the matter of plant variety, of crop, having registration No
registered in the name of application is hereby made by I/We [.....]

[Insert the name(s) of the person making this application]

being the registered proprietor(s) or successor of the registered breeder of the above mentioned registered plant variety
to surrender his certificate of registration in circumstances that are stated fully in the accompanying statement.

All communications relating to this application may be sent at the following address [.....]

[Address of the person making this application]

Dated this day of 20.....

To

The Registrar

The Plant Varieties Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Varieties Registry]

FORM PV-13

[See rule 51(2)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Notice Of Opposition For Offer To Surrender Of Certificate Of Registration Of Plant Variety

In the matter of application for offer to surrender of certificate of registration of plant variety, of crop
....., having registration No I/We [.....]

[Name of the breeder or the successor of the plant variety making an application for surrender of plant variety]
who is/are the registered agent or licensee [*]

[Name of the opponent making this application]

, hereby give notice of my intention to oppose the surrender of certificate, notice of which was received by me, dated the
..... day of, 20 sent by the Registrar of Plant Variety.

The written statement stating the facts and grounds of opposition are as follows :--

[.....]

[Written statement setting out the nature of the opponent's interest, the facts upon which he bases his case and the
relief, which he seeks. The opponent may furnish any documents upon which the opponent relies on as annexure to this
notice of opposition]

All communications in relation to these proceedings may be sent to the following address in India :-

[.....]

[Name and address of his principal place of business or residence]

Dated this day of 20

Signature.....

To

The Registrar of Plant Variety

The Office of the Plant Varieties Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Variety Registry]

FORM PV-14

[See rule 51(4)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Notice Of Intention To Attend Hearings

In the matter of the application made under section [.....]

[Insert particulars such as section No., form No., and also the name of the applicant making an application for surrender] dated day of 20 I/We [.....]

[Insert name of the person making this notice]

being the applicant or the opponent hereby making an application to the Registrar to provide an opportunity of being heard in reference to the above matter. It is requested that the time and place of the hearing be kindly intimated to me in the following address [.....]

[Address of the person giving this notice]

Dated this day of 20

Signatures [.....]

[Signature of person giving the notice or of his agent]

To

The Registrar of Plant Variety

The Office of the Plant Varieties Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Variety Registry]

[Form PV - 15]

[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

[See rule 52]

The Protection of Plant Varieties and Farmers' Right Act, 2001

Application for Revocation of the Certificate of Registration of the Plant Variety Registered under this Act by any Person

In the matter of plant variety of crop, having registration No. registered in the name of Application of hereby made by¹ being the² of the above mentioned registered plant variety for revocation of the certificate on one of the following grounds and in circumstances that are stand fully in the accompanying statement:

? that the grant of certificate of registration has been based on incorrect information furnished by the applicant.

? that the certificate of registration has been granted to a person who is not eligible for protection under this Act.

? that the breeder did not provide the Registrar with such information, documents or materials as required for registration under this Act.

? that the breeder has failed to provide an alternative denomination of the variety which is subject-matter of the registration to the Registrar in case where the earlier denomination of such variety provided to the Registrar is not permissible for registration under this Act.

? that the breeder did not provide the necessary seeds or propagating material to the person to whom compulsory license has been issued under section 47 regarding the variety in respect of which registration certificate has been issued to such breeder.

? that the breeder has not complied with the provisions of this Act or rules or regulations made there under.

? that the breeder has failed to comply with the direction of the Authority issued under this Act.

? that the grant of certificate of registration is not in the public interest.

All the communications relating to this application may be sent at the following address:-

3.

Dated this day of 20

Signature⁴

To

The Authority

The Plant Varieties Registry

At⁵

1. Insert the name of the applicant.

2. Nature of relationship of the applicant with the registered plant variety.

3. Address of the applicant.

4. Signature of the applicant or his agent.

5. State the name of the place of the appropriate office of the Plant Varieties Registry.

[Form PV - 16]

[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

[See rule 53(2)]

The Protection of Plant Varieties and Farmers' Right Act, 2001

Notice of Opposition to oppose the Revocation of Certificate of Registration of Plant Variety

In the matter of application for revocation of certificate of registration by1 I/We2

..... who is the registered breeder, hereby give notice of my intention to oppose the

revocation of certificate, of plant variety, of crop

....., having registration No. notice of which was

received by me, dated the day of 20

..... sent by the Registrar of plant variety.

The written statement stating the facts and grounds of opposition are as follows:-

3.

Dated this day of 20.....

Signature5

To

The Authority

The Plant Varieties Registry

At6

1. Name of the person making an application for revocation of plant variety.

2. Name of the registered breeder.

3. Written statement setting out the nature of the opponent's interest, the facts upon which he bases his case and the relief, which he seeks. The opponent may furnish any documents upon which the opponent relies on as annexure to this notice of opposition.

4. Name and address of his principal of business or residence.

5. Signature of the person making this application for opposition or is agent.

6. State the name of the place of the appropriate office of the plant variety registry.

[Form PV - 17]

[Substituted by Notification No. G.S.R. 494(E), dated 15.6.2015 (w.e.f. 12.9.2003).]

[See rule 53(4)]

The Protection of Plant Varieties and Farmers' Rights Act, 2001

Application for an Opportunity of being heard

In the matter of the application made under section1 dated day of

..... 20 I2 the applicant or the opponent hereby making an application to

the Registrar to provide an opportunity of being heard in reference to the above matter. It is requested that the time and place of the hearing be kindly intimated to me in the following address

3.

Dated this day of.....20.....

Signature4

To

The Authority

The Office of the Plant Varieties Registry

At5

1. Insert particulars such as section No., Form No. and also the name of the applicant making an application for revocation

2. Name of the person making this notice

3. Address of the person giving this notice

4. Signature of person giving the notice or of his agent

5. State the name of the place of the appropriate office of the Plant Variety Registry

6. Strike out whichever is not necessary.

FORM PV-18

[See rule 55(2)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Application By Any Person For Cancellation Or Change Of Any Terms Of Registration Of The Plant Variety Registered Under This Act

In the matter of plant variety, of crop having registration No registered in the name of.. application is hereby made by [.....]

[Insert the name of the person making this application]

being the registered breeder or registered agent or registered licensee or any other persons of the abovementioned registered plant variety to cancel or change the terms of registration on any of the following grounds and in circumstances that are stated fully in the accompanying statement.

1. contravention of the provisions of the Act.

2. failure to observe a condition subject to which such registration certificate is issued.

All communications relating to this application may be sent at the following address.....

Dated thisday of..... 20

Signature [.....]

[Signature of the person making this application or his agent]

To

The Registrar

The Plant Varieties Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Varieties Registry]

FORM PV-19

(See rule 57)

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Application By Any Person For Making, Expunging Or Varying The Entry In The Register Of Plant Variety

In the matter of plant variety, of crop, having registration No registered in the name of application is hereby made by [.....]

[Insert the name of the person making this application]

being the registered breeder or registered agent or registered licensee or any other person [**]

[Strike out whichever is not necessary]

of the above mentioned registered plant variety for making, expunging or varying the entry in the register of plant variety on any of the following grounds and in circumstances that are stated fully in the accompanying statement.

1. absence or omission from the register of any entry.

2. entry made in the register with sufficient cause.

3. entry wrongly remaining in the register.

All communications relating to this application may be sent at the following address [.....]

[Address of the person making this application]

Dated this day of 20

Signature [.....]

[Signature of the person making this application or his agent]

To

The Registrar

The Plant Varieties Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Varieties Registry]

FORM PV-20

[See rule 59(2)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Notice Of Opposition For Either Cancellation Or Change Of Certificate Of Registration Or Making, Expunging Or Varying The Entry In The Register Of Plant Variety By The Registrar

In the matter of the notice received dated for [.....]

[The intention of the Registrar for cancellation or change of certificate of registration or making, expunging or varying the entry in the register of plant variety]

by the Registrar of plant variety bearing registration No of crop.

I/we [.....]

[Name of the person making this notice of opposition.]

hereby give notice of my intention to oppose [.....]

[Written statement setting out the nature of the opponent's interest, the facts upon which he bases his case and the relief, which he seeks. The opponent may furnish any documents upon which the opponent relies on as annexure to his notice of opposition.]

The written statement stating the facts and the grounds of opposition are as follows [*]

[Written statement setting out the nature of the opponent's interest, the facts upon which he bases his case and the relief, which he seeks. The opponent may furnish any documents upon which the opponent relies on as annexure to his notice of opposition]

:-

All communications in relation to these proceedings may be sent to the following address [.....]

[Address of the opponent]

Dated this day of20

Signature

To

The Registrar of Plant Variety

The Office of the Plant Variety Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Variety Registry.]

FORM PV-21

(See rule 60)

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Application For Correction Of Register By The Registered Breeder

In the matter of plant variety , of crop , having registration No registered in my name i.e. application is hereby made by me for making correction to the register of plant variety on any of the following ground(s):

1. Correct any error in the Register in the name, address or description of such breeder or any entry relating to such variety.
2. Enter in the Register any change in the name, address or description of such breeder.
3. Cancel the entry in the Register of the variety in respect of which such application is made; and may make any consequential amendments or alteration in the certificate of registration and for that purpose requires the certificate of registration to be produced to him.

All communications relating to this application may be sent at the following address [.....]

[Address of the person making this application (registered breeder)]

Dated this day of 20

Signature [.....]

[Signature of the registered breeder or its agent]

To

The Registrar

The Plant Varieties Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Varieties Registry]

FORM PV-22

(See rule 62)

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Application For Correction Of Register By The Registered Agent Or The Registered Licensee

In the matter of plant variety, of crop, having registration No,
registered in the name of application is hereby made by [.....]

[Insert the name of the person making this application]

being the registered licensee/registered agent [**]

[Strike out whichever is not applicable]

of the above-mentioned registered plant variety to make correction on any of the following grounds and in circumstances
that are stated fully in the accompanying statement.

1. Correct any error.
2. Enter any change, in the name, address or description of the registered agent.
3. Enter any change, in the name, address or description of the registered licensee.

All communications relating to this application may be sent at the following address [.....]

[Address of the person making this application]

Dated this day of 20

Signature [.....]

[Signature of applicant]

To

The Registrar

The Plant Varieties Registry

At [.....]

[State the name of the place of the appropriate office of the Plant Varieties Registry]

FORM PV-23

(See rule 62)

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Alteration Of Denomination

I/We [.....]

[Insert the Name(s) (in full), addressees) and Nationality of the breeder/his legal representative/assignee]

hereby request to add/delete/alter the denomination of a registered variety of crop,
having registration No, published on

The existing denomination is The denomination when altered will appear as

All notices, requisitions and communication relating thereto may be sent to the following address :-

Dated this day of 20

Signature [.....]

[Signature and Name of the person(s), with official seal, if any, making this application]

To

The Registrar

The Plant Varieties Registry

At

FORM PV-24

[See rule 65(1)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Notice Of Opposition To The Alteration In Denomination

I/We [.....]

[Name, address and nationality of the person(s) filing notice of opposition]

hereby give notice of opposition to the proposed change in the denomination of registered plant variety
of the crophaving registration No. [.....]

[Registration number as advertised]

, published on for the following reason(s) :-

1.
2.

I/We enclose the following evidence(s) to substantiate my/our statement.

Dated this day of 20

Signature [.....]

[Signature and Name, with official seal, if any, of the person(s) filing Notice of Opposition]

To

The Registrar

The Plant Varieties Registry

At

FORM PV-25

[See rule 66(2)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Application For Compensation

I/We [.....]

[Insert name (in full), address and nationality of persons making request for compensation]

herby request that I/we may be Compensated in respect of the plant variety of the crop
....., having registration No and denomination, for failure of
propagating material to perform as per stipulated expectation under given conditions.

In support of my/our entitlement to compensation, I/we are enclosing the following evidence(s) :-

1. [.....

2.]

[Specify the particulars of evidences showing how the claim made is substantiated]

My/our Address for service is

.....
Dated this day of 20

Signature [.....]

[To be signed by the Applicant(s) along with the name(s), and official seal, if any]

To

The Authority,

The Protection of Plant Varieties and Farmers' Rights

FORM PV-26

[See rule 67(2)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Notice Of Opposition To An Application For Compensation

I/We [.....]

[Insert the name (in full), address and nationality of the applicant]

hereby give notice of opposition to the application for compensation made by/on behalf of [.....]

[The Name(s) of the person(s) who has filed an application for compensation]

in respect of the registered plant variety of crop having registration No.
..... dated

The grounds on which the said application for compensation is opposed are as follows:-

1.

2.

3.

In support of my/our opposition, I/we hereby enclose herewith certified copies of the following documents :-

1.

2.

3.

My lour address of service in India is -

Dated this day of 20

Signature [.....]

[To be signed by the Applicant(s)]

To
The Authority,
The Protection of Plant Varieties and Farmers' Rights
FORM PV-27
[See rule 68(2)]
The Protection Of Plant Varieties And Farmers' Rights Act, 2001
Notice Of Opposition To An Application For Compensation
I/We [.....]
[Insert the name (in full), address and nationality of the applicant]
hereby give notice of opposition to the application for compensation made by/on behalf of
[.....]
[The Name(s) of the person(s) who has failed an application for compensation]
in respect of the registered plant variety of crop, having registration No
..... dated

The grounds on which the said application for compensation is opposed are as follows :-

1.
2.
3.

In support of my / our opposition, I/we hereby enclose herewith certified copies of the following documents :-

1.
2.
3.

My/our address of service in India is-
Dated this day of 20

Signature [.....]
[To be signed by the Applicant(s)]

To
The Authority,
The Protection of Plant Varieties and Farmers' Rights
FORM PV-28
[See rule 71(1)]
The Protection Of Plant Varieties And Farmers' Rights Act, 2001
Grant Of Compulsory Licence
I/We [.....]
[State the name (in full), address and nationality of the Applicant(s)]
hereby apply for the grant of compulsory licence for plant variety, of crop, having
registration No., published on on the following grounds, namely:-

1. The reasonable requirements of the public for seeds or other propagating material of the variety have not been satisfied.
2. The seeds or propagating material of the variety not available to the public at reasonable price.

The documentary evidence in support of my our interest and the facts stated above and copies thereof are herewith enclosed :-

1.
2.
3.

I/We declare that the facts and matters stated herein are true to the best of my our knowledge, information and belief.
My Our address for service in India is-
Dated this day of 20

Signature [.....]
[To be signed by applicant(s) or if the applicant(s) is/are absent from India by authorised patent agent]

To

The Authority,

The Protection of Plant Varieties and Farmers' Rights

FORM PV-29

[See rule 71(6)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Notice Of Opposition To An Application For Compulsory Licence

I/We [.....]

[Insert the name (in full), address and nationality of the applicant]

hereby give notice of opposition to the application for compulsory license made by/on behalf of [.....]

[The Name(s) of the person(s) who has filed an application for compulsory license]

in respect of the registered plant variety of crop, having registration No dated

The grounds on which the said application for compensation is opposed are as follows :-

1.
2.
3.

In support of my/our opposition, I/we hereby enclose herewith certified copies of the following documents :-

1.
2.
3.

My our address of service in India is-

Dated this day of 20

Signature [.....]

[To be signed by the Applicant(s)]

To

The Authority,

The Protection of Plant Varieties and Farmers' Rights

FORM PV-30

[See rule 73(1)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

AN APPLICATION FOR REVOCATION OF COMPULSORY LICENCE

I/We [.....]

[Insert the name (in full), address and nationality of the applicant]

hereby request for revocation of compulsory licence granted to [.....]

[The Name(s), address and nationality of the person(s), who has been granted compulsory license]

in respect of plant variety, of crop, having registration No, dated, for the following reasons :

1. Violation of terms and conditions of compulsory licence.
2. Inappropriate to continue licence in public interest.

The certified copies of all the documents are enclosed here with in support of my I our grounds for revocation.

I We declare that the facts and matters stated herein are true to best of my I our knowledge, information and belief.

My IOur address for service in India is-

.....
.....

Dated this day of 20

Signature [.....]

[To be signed by the Applicant(s)]

To

The Authority,

The Protection of Plant Varieties and Farmers' Rights

FORM PV-31

[See rule 73(3)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

NOTICE OF OPPOSITION TO AN APPLICATION FOR REVOCATION

I/We [.....]

[Insert the name (in full), address and nationality of the applicant licensee]

hereby give notice of opposition to the application for revocation for grant of compulsory license made by I on behalf of [.....]

[The Name(s) of the person(s) who has filed an application for revocation]

in respect of the registered plant variety of crop, having registration No. dated

The grounds on which the said application for the revocation of grant of compulsory licence is opposed are as follows :-

1.
2.
3.

In support of my our opposition, I/we hereby enclose herewith certified copies of the following documents :-

1.
2.
3.

My/our address of service in India is-

.....
.....

Dated this day of 20

Signature [.....]

[To be signed by the Applicant(s)]

To

The Authority,

The Protection of Plant Varieties and Farmers' Rights

FORM PV-32

[See rule 75(1)]

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Form Of Authorisation To Institute Suit

In the matter of plant variety, of crop, having registration No published on

I/We [.....]

[Insert the Name (in full), address and nationality of the applicant]

hereby authorise [.....]

[Insert the Name (in full), address and nationality of the registered agent/licensee]

to act on my/our behalf in connection with and request that all notices, requisitions and communications relating thereto may be sent to such agent/licensee at the above address.

I/We hereby revoke all previous authorisations, if any made, in respect of the same matter or proceedings.

Dated this day of 20

[Signature]

[To be signed by the applicant(s)]

(Name and official seal if any)

To

The Registrar

The Plant Varieties Registry

FORM PV-33

(See rule 76)

The Protection Of Plant Varieties And Farmers' Rights Act, 2001

Request For Certified Copies Of Entries In The Plant Varieties Register Or For Inspection Of Such Entry

In the matter of plant variety, of crop, having registration No,
published on,

I/We [.....]

[Insert the Name (in full), address and nationality of the applicant.]

hereby request you to furnish me/us with a certified copy of.. and to send the certified copy
on address given above.

I/We hereby request you to allow me/us to inspect entries/document. in respect of the above plant
variety. The purpose for which the certified copy of the entry(ies)/document is required is as follows :-

1.
2.
3.

Dated this day of 20

Signature [.....]

[Signature of the applicant]

(Name and official seal if any)

To

(1)

The Registrar

The Plant Varieties Registry

(2)

The Authority

Plant Varieties and Farmers' Rights Authority

Signature [.....]

[To be signed by the applicant(s)]

FORM O-1

(See rule 30)

Government Of India, Plant Varieties Registry Advertisement Of Accepted Application For Registration

Application No. [.....]

[Name (in full), address/service address (with registration number, if applicable) and nationality of the applicant]
filed on by [.....]

[Name (in full), address and nationality of the breeder (in case applicant is not the breeder)]

or on behalf of Mr for new plant variety/extant variety/ farmers, variety essentially derived
variety, of crop, having denomination, the specification
including its drawing and or photograph(s) of which are given below, has been accepted and given registration number
..... on

The convention application no, in respect of the said variety has been filed on,
in [.....]

[Name of the convention country]

Appropriate office for the opposition of proceeding under rule 29, of the Protection of Plant Varieties and Farmer's
Rights, Rules, 2003 is [.....]

[Name of Office]

FORM O-2

(See rules 36 and 37)

Government Of India, Plant Variety Registry

Certificate Of Registration

Registration No of 20

Whereas has declared that he has developed plant variety/essentially derived
plant variety and that he is the true breeder thereof (or the legal representative or assignee of the true breeder) and that
he is entitled to a plant variety right on the said variety, having regard to the provisions of the Protection of Plant
Varieties and Farmer's Right Act, 2001 and that there is no objection to the registration of plant variety in favour of him.

And whereas he has, by an application, requested that registration of plant variety/essentially derived plant variety may be allowed to him for the said plant Variety;

And whereas he has, by and in his application, particularly described the various distinctive features and mentioned the denomination of the said plant variety;

Now, these presents that the above said applicant (including his legal representatives and assignees or any of them) shall, subject to the provisions of the Protection of Plant Varieties and Farmers Rights Act, 2001 and the conditions specified in section 47 of the said Act, and to the conditions and provisions specified by any other law for the time being in force, have the exclusive right to produce, sell, market, distribute, import or export the variety for a term of years from the day of... , 20 and of authorising any other person to do so, subject to the conditions that the validity of this registration is not guaranteed and that the fee prescribed for the continuance of this registration are duly paid.

In witness thereof, the Registrar has caused this registration to be sealed as of the day of 20

Seal and Signature of the Registrar,

Plant Varieties Registry

Date of Grant

Note.-The fees for maintenance of this registration, if it is to be maintained, will fall due on day of and on the same day in every year thereafter.

FORM O-3

(See rule 38)

Government Of India, Plant Varieties Registry

Notice Of Non-Completion Of Registration

Application No dated

Notice is hereby given under rule 38 of the Protection of Plant Varieties and Farmers Rights Rules, 2003 that the registration of the plant variety, in respect of which application was made on the day of 20 , has not been completed by reason of default on the part of the applicant. The applicant is directed to complete the following requirement(s) within a period of 30 days from the date of the receipt of this Notice-

3.

4.

Unless all the above requirements are met within thirty days of the receipt of this notice, the application shall be treated as abandoned.

Dated this day of 20

Seal and Signature of the Registrar

Plant Varieties Registry

FORM O-4

(See rule 44)

Government Of India, Protection Of Plant Varieties And Farmers Rights Authority Reference For Recovery Of Benefit Sharing Amount

To

Reference Case No

Whereas has/have been asked vide Order dated to deposit an amount of Rs as Benefit sharing amount, determined by this Authority vide the same Order issued in respect of benefit sharing application No. , with the National Gene Fund under the provisions of section 26(6).

And whereas the said person(s) R/o has/have defaulted or failed to deposit the said benefit sharing amount for the last and whereas the said person(s) reside(s)/ carries on his/their work at.. , which is within your jurisdiction.

In view of the above-mentioned default on the part of the person (s) named herein, a reference is being made herein to

your office to collect the above mentioned amount of benefit sharing as an arrear of land revenue under the provisions of the

The amount realised as an arrear of land, revenue, pursuant to this reference, is required to be deposited with the National Gene Fund established under the Protection of Plant Varieties and Farmers' Rights Act, 2001 within a period of three months after realisation of the said amount.

Dated this day of 20 .

.....

Signature with seal of the Authority

FORM O-5

(See rule 47)

Government Of India The Registrar Or Plant Varieties Certificate Of Registration Of Agent Or Licencee

No

This is to certify that Shri/Smt/Ms R/o has/have been registered as an agent/licensee in respect of plant variety(ies), of crop, registration No on this day of.. 20.

This Certificate shall, however, be subject to the terms and conditions stipulated in the contract in respect of the above mentioned registered plant variety(ies).

.....

Seal and Signature of the Registrar

Plant Varieties Registry

FORM Q-6

(See rule 49)

Government Of India, Plant Varieties Registry Notice Under Section 28

Notice No

Application No In respect of the plant varieties registration No Whereas has/have filed an application for variation/cancellation of the terms of the registration certificate No in respect of the plant variety of crop, having denomination

In view of the above, you are hereby notified to file opposition to the said application(s) with necessary documents within a period of three months from the receipt of this notice, failing which the said application shall be disposed of accordingly.

Dated this day of 20 . .

.....

Seal and Signature or Registrar

Plant Varieties Registry

FORM O-7

[See rule 51(1)]

Notice Of The Offer To Surrender The Certificate Of Registration By The Breeder Of The Plant Variety Registered Under This Act Under Section 33(2) By The Registrar

Registrar of Plant Variety hereby serves upon a notice to the registered agent and/ or registered licensee of the application received under section 33(1).

Copy of the application along with the accompanying statement received by the Registrar is annexed herewith.

If any person notified hereby, intends to oppose the surrender of certificate of registration, shall within 3 months of the receipt of this notification may oppose in the prescribed manner.

Dated this day of 20.....

To

(3)

The Registered Agent

At:[*]

[Insert the name and address of the registered agent and/or the registered licensee.]

(4)

The Registered Licensee

At:[*]

[Insert the name and address of the registered agent and/or the registered licensee]

FORM O-8

[See rule 53 (1)]

Notice Of The Application For Revocation Of The Certificate Of Registration Of The Plant Variety Registered Under This Act By Any Person Under Section 34

Authority of Plant Variety hereby serves upon a notice to the registered breeder of the application received under section 34.

Copy of the application along with the accompanying statement received by the Registrar is annexed herewith.

If any person notified hereby, intends to oppose the revocation of certificate of registration, shall within 3 months of the receipt of this notification may oppose in the prescribed manner.

Dated this day of 20

[.....]

[Signature of the Registrar of plant variety or the duly authorised person]

To

The Registered Breeder

At :[*]

[Insert the name and address of the registered breeder and/or registered agent and/or the registered licensee]

FORM O-9

[See rule 59(1)]

Notice Of The Registrar For Either Cancellation Or Change Of Certificate Of Registration Or Making, Expunging Or Varying The Entry In The Register Of Plant Variety

In the matter of plant variety registration No of crop, registered in the name of..... Notice is hereby served by the Registrar of Plant Variety in the event the Registrar intends to do the following change(s) or correction(s) and in circumstances that are stated fully in the accompanying statement.

1. cancellation the certificate of registration.
2. changing the certificate of registration.
3. making, expunging or varying the entry in the Register of Plant Variety.

Dated this day of 20

To

D. Registered Breeder

At:[*]

[Insert the name and address]

E. Registered Agent

At:[*]

[Insert the name and address]

F. Registered Licensee

At:[*]

[Insert the name and address]

FORM O-10

[See rule 63(1)]

Notice Of Application For Correction Of Register By The Registered Agent Or The Registered Licensee Under Section 37(2)

Registrar of Plant Variety hereby serves upon a notice to the registered breeder of the application received under section 37(2).

Copy of the application along with the accompanying statement received by the Registrar is annexed herewith.

Dated this day of 20

To

(A)

The Registered Breeder

At :[*]

[Insert the name and address]

FORM O-11

(See rule 65)

Government Of India, Plant Varieties Registry Alteration In Denomination

Plant Variety of crop having registration No
dated

Notice is hereby given that an application to alter the denomination of plant variety of crop
..... having registration No

dated was made by on

The altered denomination as given below has been allowed.

Dated thisday of 20 ...

.....

Seal and Signature of the Authority

Protection of Plant Varieties and

Farmers' Rights Authority

FORM O-12

Government Of India, Plant Varieties Registry Notice For Compensation Towards Communities' Rights

Plant varietyof crop having Registration No dated Notice is
hereby ,given that the claims. have .been, received from towards the
contribution made by him/them, in the evolution .of the above plant variety. The breeder/his registered agent/legal
representative/assignee is directed to file any objection to such claim(s) within three months from the date of this notice.

He shall substantiate his objections to the claims by providing authenticated evidences.

He shall be given opportunity of being heard if so desired.

Dated this day of 20.....

[Specify the particulars of such documents, giving its date and parties to the same and showing how the claim made is
substantiated]

Related AI tags, queries and research notes

Translation